

		challenged her termination. (Griner Decl. ¶ 2.) Also, the City had to incur payroll expenses for staff to manage this arbitration claim. (Griner Decl. ¶ 3.) However, there is no evidence or argument by the City as to how reliance on Defendant’s misrepresentations resulted in this claimed damage. To the contrary, it would appear that the City terminated Defendant from employment because it found out that she had made misrepresentations. Thus, the City was not relying on the false information when it took the action that resulted in its claimed damages. Accordingly, the motion to strike is GRANTED as to the first cause of action for fraud. <u>Third Cause of Action for Violations of California’s False Claims Act</u> Defendant neglects to separately address the City’s claim under the California False Claims Act. “In 1987, the California Legislature enacted the False Claims Act, patterned on a similar federal statutory scheme, to supplement governmental efforts to identify and prosecute fraudulent claims made against state and local governmental entities. As relevant here, the False Claims Act permits the recovery of civil penalties and treble damages from any person who ‘[k]nowingly presents or causes to be presented [to the state or any political subdivision] . . . a false claim for payment or approval.’ To be liable under the False Claims Act, a person must have actual knowledge of the information, act in deliberate ignorance of the truth or falsity of the information, and/or act in reckless disregard of the truth or falsity of the information.” (<i>Rothschild v. Tyco Internat. (US), Inc.</i> (2000) 83 Cal.App.4th 488, 494–495 (internal citations omitted).) The City has submitted a copy of the Ruling from the Arbitration Proceedings in which the arbitrator determined that the City’s allegations that Defendant acted fraudulently and dishonestly in claiming an inability to work were credible. While this does not appear to be a decision that would be binding upon this Court, Defendant does not deny that the City will be able to present evidence in this case consistent with that presented at the arbitration. This is sufficient to meet the minimal merit standard expressed by the California Supreme Court in <i>Bonni v. St. Joseph Health System</i>. (<i>Bonni, supra</i>, 11 Cal.5th at 1009.) Accordingly, the motion is DENIED as to the third cause of action. <u>Second and Fourth Causes of Action for Conspiracy and Restitution</u> Neither party specifically addressed the conspiracy and restitution claims, which appear to be derivative of the other claims. Since the third causes of action survives, and no argument specific to these claims has been presented, the Court DENIES the motion as to the second and fourth causes of action. Due to this mixed outcome, Defendant’s request for attorney’s fees and costs is DENIED. Defendant to give notice.
3.	30-2023-01329362 Re/Pro Realty vs. Avarca	1. Motion to Compel Deposition (Oral or Written) Plaintiff Re/Pro Realty’s motion to compel the deposition of third party Claudia Romo is DENIED. Per CRC 3.1300(c), <u>a proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.</u> No proof of service was filed with the moving papers. Plaintiff to give notice.